
No. 03-17-00812-CV

**IN THE COURT OF APPEALS
FOR THE THIRD DISTRICT OF TEXAS
AUSTIN, TEXAS**

FILED IN
3rd COURT OF APPEALS
AUSTIN, TEXAS
12/12/2019 8:25:58 AM
JEFFREY D. KYLE
Clerk

**AHMAD ZAATARI, MARWA ZAATARI, JENNIFER GIBSON HEBERT,
JOSEPH “MIKE” HEBERT, LINDSAY REDWINE, RAS REDWINE VI,
AND TIM KLITCH**

Appellants/Cross-Appellees,

&

STATE OF TEXAS

Intervenor,

v.

**CITY OF AUSTIN, TEXAS AND STEVE ADLER, MAYOR OF THE CITY
OF AUSTIN**

Appellees/Cross-Appellants.

From the 53rd Judicial District Court, Travis County, Texas
Cause No. D-1-GN-16-002620

**CITY OF AUSTIN AND MAYOR STEVE ADLER’S UNOPPOSED
MOTION FOR EXTENSION OF TIME TO FILE MOTION FOR
REHEARING**

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ATTORNEYS FOR APPELLEES/CROSS-APPELLANTS

TO THE HONORABLE THIRD COURT OF APPEALS:

Appellees/Cross-Appellants, City of Austin and Mayor Steve Adler, (jointly “City of Austin”) respectfully file their Texas Rules of Appellate Procedure 49.8 and 10.5(b) Motion for Extension of Time to File Motion for Rehearing.

This Court issued its opinions on November 27, 2019. The City of Austin’s motion for rehearing is currently due December 12, 2019. The City of Austin respectfully requests a 30-day extension of time, making its motion for rehearing due January 13, 2020.

The City of Austin requests a 30-day extension of their December 12, 2019 deadline for the following reasons. Along with working on the preparation of the City of Austin’s motion for rehearing in this case, among other matters, the City of Austin’s counsel is also researching and preparing appellate briefs in the following cases with early January 2020 deadlines: *Benge v. Roberts*, No. 03-19-00719-CV, in the Third Court of Appeals, Appellant’s brief due January 13, 2020; *Goepp v. Comerica Bank & Trust, N.A.*, No. 03-19-00485-CV, in the Third Court of Appeals at Austin, Texas, Appellee’s brief due January 6, 2020; *Benge v. Thomas, et al.*, No. 13-18-00619-CV, in the Thirteenth Court of Appeals, Appellant’s brief due January 6, 2020; and *Bank of Texas v. Collin Cent. Appraisal Dist.*, No. 05-19-00569-CV, in the Fifth Court of Appeals at Dallas, Texas, Appellant’s brief due January 13, 2019.

Finally, the upcoming Christmas holidays further support this requested extension.

This is the City of Austin's first request for an extension of time to file its motion for rehearing. The requested extension is not sought for delay but instead is necessary for the City of Austin's counsel to have sufficient time to prepare the motion for rehearing and to satisfy other obligations.

Appellants/Cross-Appellees and Intervenor, the State of Texas, are unopposed to the City of Austin's requested extension of time.

For these reasons, Appellees/Cross-Appellants City of Austin and Mayor Steve Adler respectfully request that this Court grant their unopposed motion for extension of time and set their deadline to file a motion for rehearing for January 13, 2020. The City of Austin prays for such other and further relief to which they may be entitled.

Respectfully submitted,

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**ATTORNEYS FOR CITY OF AUSTIN
AND MAYOR STEVE ADLER**

CERTIFICATE OF CONFERENCE

In accordance with Rule 10.1(a)(5) of the Texas Rules of Appellate Procedure, I certify that on December 11, 2019, I conferred with counsel for Appellants/Cross-Appellees and counsel for Intervenor about the requested extension of time listed in this motion. Intervenor, the State of Texas and Appellants/Cross-Appellees are unopposed to the requested extension.


Laurie Ratliff

CERTIFICATE OF SERVICE

I certify that *Appellees/Cross-Appellants City of Austin and Mayor Steve Adler's Unopposed Motion for Extension of Time to File Motion for Rehearing* was served on Appellants/Cross-Appellees as indicated below in accordance with the Texas Rules of Appellate Procedure 9.5(e) on this 12th day of December, 2019 via e-service:

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